

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.



CHAPTER clxxiii.

An Act to extend the boundaries of the city of Manchester and for purposes incidental thereto. A.D. 1930.]
[1st August 1930.]

WHEREAS the city of Manchester (hereinafter called "the city") is a county borough under the government of the lord mayor aldermen and citizens of the city (hereinafter called "the Corporation") :

And whereas the unrepealed provisions of the local Acts specified in Part I of the schedule to this Act and of the Orders specified in Part II of that schedule are in force in the city :

And whereas the area comprising the townships of Baguley Northen Etchells and Northenden which are contributory places in the rural district of Bucklow and are situate in the administrative county of Chester immediately adjoins the city :

And whereas it is expedient to alter and extend the boundaries of the city so as to include the said townships therein and to alter and extend the boundaries of the township of Manchester so as to include those townships therein :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. Acts 1872 and 1903 as amended by the Local Government
— (County Boroughs and Adjustments) Act 1926 have been
observed :

May it therefore please Your Majesty that it may be
enacted and be it enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows (that is to say) :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Manchester
Extension Act 1930.

(2) The local Acts as hereinafter defined Manchester
Corporation (Improvements) Act 1930 Manchester Cor-
poration (General Powers) Act 1930 and this Act may be
cited jointly as the Manchester Corporation Acts 1844
to 1930.

Interpreta-
tion.

2.—(1) In this Act the several words and expressions
to which meanings are assigned by the Public Health
Acts shall have the same respective meanings unless there
be something in the subject or context repugnant to
such construction.

(2) In this Act unless the subject or context otherwise
requires—

- (i) "The city" means the existing city of Man-
chester as extended by this Act;
- (ii) "The existing city" means the city as it exists
immediately before the appointed day;
- (iii) "The Corporation" means as the context
requires the lord mayor aldermen and citizens
of the existing city or of the city;
- (iv) "The council" means the council of the city;
- (v) "The lord mayor" and "the town clerk"
mean respectively the lord mayor and the town
clerk of the existing city or of the city (as the
context requires) and "the town clerk" in-
cludes any person duly authorised to discharge
temporarily the duties of that office;

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

- (vi) "The general rate fund" and "the general rate" mean respectively the general rate fund and the general rate of the existing city or of the city (as the context requires); A.D. 1930.
 —
- (vii) "The county" and "the county council" mean respectively the administrative county of Chester and the county council of that county;
- (viii) "The rural district" and "the rural council" mean respectively the rural district of Bucklow and the rural district council of that district;
- (ix) "The added area" means the parts of the rural district which are added to the existing city by this Act;
- (x) "The existing townships" means the existing townships of Baguley Northen Etchells and Northenden;
- (xi) "The local Acts" means the local Acts specified in Part I of the schedule to this Act the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders;
- (xii) "The appointed day" means the first day of April nineteen hundred and thirty-one;
- (xiii) "The city map" means the map marked "Manchester extension city map" and signed in triplicate by Frank Lee the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited in the Parliament Office of the House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the town clerk at his office;
- (xiv) "Existing" in relation to any area altered by this Act means existing immediately before the appointed day;
- (xv) "The Act of 1888" "the Act of 1894" and "the Act of 1929" mean respectively the Local Government Act 1888 the Local Government Act 1894 and the Local Government Act 1929;

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.
—

- (xvi) "The Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (xvii) "The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the Borough Councillors (Alteration of Number) Act 1925;
- (xviii) "Provisional Order" includes a Special Order or any Order having effect as an Act of Parliament;
- (xix) "The Minister" means the Minister of Health.

Authenti-
cation of
notices &c.

3. Any summons demand notice order or document (other than a conveyance contract or security) to be served made given or delivered by or on the part of the Corporation under this Act shall if signed by the town clerk be of the same effect as if sealed by the Corporation and the provisions of section 51 (Further provision as to authentication proof and service of orders and notices) of the Manchester Corporation Waterworks and Improvement Act 1867 section 35 (Service of notices &c.) of the Manchester Improvement Act 1871 and section 28 (Service of notices and other documents) of the Manchester Corporation Act 1927 shall apply to every such summons demand notice order or other document.

Commence-
ment of
Act.

4. Save as otherwise expressly provided this Act shall come into operation on the appointed day :

Provided that for the purposes of—

- (a) the compilation alteration or re-arrangement of any register of electors made under the Representation of the People Acts;
- (b) all proceedings preliminary or relating to any election to be held in the year nineteen hundred and thirty-one for any area affected by this Act; and
- (c) the preparation of any precept or contribution order to be issued or made on or after the appointed day;

this Act shall operate from the date of its passing.

PART II.

A.D. 1930.

EXTENSION OF CITY.

5.—(1) The boundary of the existing city the area whereof is coloured blue on the city map shall be altered so as to include in addition to that area so much of the rural district as comprises the existing townships of Baguley Northen Etchells and Northenden which are coloured pink on the city map. Extension of city.

(2) The boundary of the city shall be that shown by the inner edge of the purple line on the city map and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the city and shall be the county borough of Manchester for the purposes of the Act of 1888 and for all other purposes.

6.—(1) Copies of the city map deposited with the town clerk certified by him to be true shall be sent by him as soon as may be to the clerk of the county council to the clerk of the county council of the county palatine of Lancaster to the clerk to the rural council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Health to the Minister of Transport to the Minister of Agriculture and Fisheries to the Postmaster-General and to the Electricity Commissioners. City map.

(2) Copies of or extracts from the city map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the map so far as it relates to the boundary of any area altered by this Act.

(3) The city map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the city and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the general rate fund.

7.—(1) The boundary between the county palatine of Lancaster and the county of Chester shall be altered Alteration of county boundary.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — so that the city shall be wholly situate in the county palatine of Lancaster and the county borough of Manchester shall for the purposes of the Act of 1888 including the purposes of any commission of assize oyer and terminer or gaol delivery the service and qualification of jurors the making up of the jurors' book sheriff lieutenant and militia be within the county palatine of Lancaster.

(2) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connection with any action or proceeding pending or existing at the appointed day and appertaining to the existing townships shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office and as if the sheriff of the county palatine of Lancaster were as respects the existing townships the new sheriff in succession to the sheriff of the county of Chester.

Alterations
of parishes.

8. The existing townships shall be added to and form part of the township of Manchester.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION.

Existing
lord mayor
aldermen
and coun-
cillors.

9. The persons who hold office immediately before the appointed day as lord mayor aldermen and councillors of the existing city shall on the appointed day become the lord mayor aldermen and councillors of the city and shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed.

Municipal
wards
aldermen
and coun-
cillors.

10.—(1) The number of councillors of the city shall be increased from one hundred and five to one hundred and eight and the number of aldermen shall be increased from thirty-five to thirty-six.

(2) Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of the number and boundaries of wards or the number of councillors the following provisions shall have effect:—

(a) The existing wards of the city and the number of councillors assigned to those wards shall remain unaltered;

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

(b) The added area shall be constituted a new ward of the city to be called "the Wythenshawe Ward" and three councillors shall be assigned to that ward. A.D. 1930.

(3) The first election of councillors for the Wythenshawe Ward shall be held on the twenty-fifth day of March nineteen hundred and thirty-one and the lord mayor and the town clerk or such other persons as the Secretary of State shall appoint shall perform the duties devolving upon the lord mayor and town clerk respectively under the Municipal Corporations Acts and at every election for the said ward until the first day of November nineteen hundred and thirty-one the lord mayor shall be the returning officer but he may appoint some other person to act as returning officer.

(4) The first election of the additional alderman of the city shall be held at the first meeting of the council after the appointed day and the additional alderman shall be chosen from among the councillors elected for the Wythenshawe Ward or from among the persons qualified to be councillors whose qualification arises in that ward.

(5) The councillors for the Wythenshawe Ward elected in the year nineteen hundred and thirty-one in pursuance of this Part of this Act shall retire as follows :—

- (a) The councillor who is elected by the smallest number of votes on the first day of November nineteen hundred and thirty-two;
- (b) The councillor who is elected by the largest number of votes on the first day of November nineteen hundred and thirty-four;
- (c) The other councillor on the first day of November nineteen hundred and thirty-three.

(6) If for any reason it is doubtful which of the councillors ought to retire on a date mentioned in this section the question shall be determined at the first or second meeting of the council held after the appointed day by lot conducted under the direction of the person presiding at that meeting.

(7) The additional alderman elected in pursuance of this Part of this Act shall retire on the ninth day of November nineteen hundred and thirty-seven.

A.D. 1930.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

County and
Borough
Councils
(Qualifica-
tion) Act
1914.

11. For the purposes of the application to the city of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the city.

County
electoral
division.

12. Subject to the provisions of the Acts of 1888 and 1929 the added area shall be separated from the county electoral division of which it forms part and the person who immediately before the appointed day is the county councillor representing that division shall be deemed to have been elected to represent that division as altered by this Act and shall retire on the date on which he would have retired if this Act had not been passed.

Jurisdiction
powers and
duties of
quarter
sessions &c.
extended.

13.—(1) The powers and duties of the quarter sessions recorder coroner and clerk of the peace of the existing city of the Salford Hundred Court of Record and the judge registrar and other officers thereof and of the stipendiary magistrate and justices of the peace appointed for the existing city and of the clerk to those justices and of the police constables and other peace officers of the existing city shall be extended to and apply throughout the city :

Provided that—

- (a) every person committing an offence in the added area prior to the appointed day shall be tried and dealt with as if this Act had not been passed ;
- (b) every proceeding which prior to the appointed day has been begun by or is pending before any coroner or any justice in relation to any matter arising in or concerning the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added area shall cease to form part of any petty sessional division of the county.

City
auditors.

14. The auditors of the existing city who are in office on the appointed day shall continue in office and shall be the city auditors until the next ordinary day of election of city auditors.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

15. Subject to the provisions of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing city (not being property held on any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the city and the Corporation shall hold enjoy and exercise for the benefit of the city all the powers which immediately before that day are exerciseable by or vested in the Corporation for the benefit of the existing city and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing city shall on that day attach to them in respect of the city.

A.D. 1930.

—
Corporation
property
liabilities
&c.

16.—(1) So much of any sums borrowed by the Corporation as immediately before the appointed day are owing and charged upon a fund or rate of the existing city or the revenues of the existing city shall be charged upon the corresponding fund or rate of the city or the revenues of the city.

Mortgage
debts of
Corpora-
tion.

(2) All borrowed moneys to which this section applies with the interest thereon shall be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

17.—(1) For the purposes and subject to the provisions of the Education Act 1921—

Transfer of
public
elementary
schools.

- (a) any public elementary school provided by the county council as local education authority and situate within the added area and the furniture fittings books and apparatus belonging to the county council of any public elementary school within that area shall by virtue of this Act be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the county council as the local education authority;
- (b) all contracts debts and liabilities which immediately before the appointed day are existing or are owing by or attach to the county council in respect exclusively of any public elementary school within the added area or of the furniture

A.D. 1930.

fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school within that area shall by virtue of this Act enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority;

(c) section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this section;

(d) subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school or of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Act as will be owing immediately before the appointed day and the liability for the payment of interest on that part of any such loan shall by virtue of this Act be transferred and attach to the Corporation as the local education authority and so much of any such loan as will then be owing shall be charged on the general rate fund and general rate and shall be repaid by the Corporation within the period (if any) for which that part of the loan was originally sanctioned or within which that part of the loan is otherwise required to be repaid or is made repayable.

(2) In this section "public elementary school" includes the site and schoolhouse and also any land acquired and held by the county council as the local education authority for purposes of elementary education.

School
managers.

18. Any manager of any public elementary school within the added area who was appointed by the county council or by the rural council or by a parish council shall vacate office on the appointed day.

County
police.

19.—(1) On the appointed day such members (if any) of the police force of the county as before that day shall have been determined by agreement subject to the approval of the Secretary of State between the standing joint committee of the county

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

and the watch committee of the Corporation or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the city : A.D. 1930.

Provided that no member of the police force of the county shall be so transferred without his consent.

(2) Every member of the county police force so transferred shall hold office in the police force of the city upon the same tenure and subject to the same terms and conditions as the other serving members of the city police force of the same rank as that member and any period of service which the transferred member was entitled to reckon before the transfer for purposes of pay promotion or pension in the police force of the county shall be reckoned for the same purposes in the police force of the city :

Provided that where the scale of ordinary pensions applicable to a member of the police force of the county who is so transferred is by virtue of section 29 (1) (a) of the Police Pensions Act 1921 a scale other than that prescribed in Part I of the First Schedule to that Act such scale shall continue to apply to him as if he had not been so transferred.

(3) The provisions of subsection (2) of section 8 of the Police Pensions Act 1921 shall extend and apply to and in relation to any member of a police force transferred under this section as if that member had removed with the written sanction of the chief constable of the county and notwithstanding that at the date of the transfer that member may not have completed one year's approved service in the police force of the county.

20. Any county police station situate within the added area and any residence for a constable or cell so situate and the fittings and furniture of any such police station residence or cell shall by virtue of this Act be transferred to and vest in the Corporation as from the appointed day for all the estate and interest therein of the county council and section 68 of the Act of 1894 shall apply with respect to any adjustment for the purposes of this section. County police stations &c.

21.—(1) The persons who immediately before the appointed day hold the office of rural district councillors Continuing rural council.

**[Ch. clxxiii.] Manchester Extension [20 & 21 GEO. 5.]
Act, 1930.**

A.D. 1930. — for the existing townships shall cease to hold that office and the number of members of the rural council shall accordingly be reduced by four.

(2) Subject to subsection (1) of this section the rural council shall continue and shall be deemed to have been elected for and shall be the district council for the rural district as diminished by this Act.

Powers of
county and
district
councils.

22. The county council and the rural council shall cease to exercise any powers or discharge any duties within any part of the added area.

Property
&c. of
rural
council.

23. Subject to the provisions of this Act and to any necessary adjustments—

(1) any property or liabilities which immediately before the appointed day are vested in or attach to the rural council in relation exclusively to the added area or any portion of the added area shall by virtue of this Act be transferred to and vest in or attach to the Corporation;

(2) any property or liabilities which immediately before the appointed day are vested in or attach to the rural council in relation to the added area or any portion of the added area conjointly with any other area shall be a matter for adjustment under section 62 of the Act of 1888.

Powers
property
&c. of
parish
councils.

24. Subject to the provisions of this Act—

(1) the parish councils of the existing townships of Baguley Northen Etchells and Northenden shall cease to exist:

(2) any powers or duties vested in or imposed on the parish councils of the existing townships shall be vested in or imposed on the Corporation:

(3) any property or liabilities held or incurred by any of the said parish councils shall by virtue of this Act be transferred to and vest in or attach to the Corporation.

Local Acts.

25.— (1) Subject to the provisions of this Act the unrepealed provisions of the local Acts and of any other local Act (including any local Act passed or to

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

be passed during the present session of Parliament) A.D. 1930.
or of any other Provisional Order duly confirmed by
Parliament and affecting the existing city or the
Corporation as the same respectively are in force
within the existing city on the appointed day shall
extend and apply to the city and any reference therein
to the existing city and the Corporation shall be deemed
to refer to the city and the Corporation thereof :

Provided that section 20 (Expenses of fires to be paid
to the city treasurer by owners of property) of the
Manchester Town Hall and Improvement Act 1866 shall
not be in force within or apply to any part of the added
area :

Provided also that nothing contained in this section
shall have the effect of extending any powers conferred
upon the Corporation by a local Act passed in the present
session of Parliament for the running of omnibuses or for
entering into agreements in regard to the working of an
omnibus service.

(2) The provisions of any protective clause for the
benefit of the county council or the rural council (or the
predecessors of any such council) contained in any local
Act confirmation Act or Provisional Order (by whomsoever
obtained) shall in respect of all matters relating to or
affecting any part of the added area enure to the benefit
of the Corporation and shall be construed as if a reference
to the Corporation were substituted for any reference to
such council (or their predecessors) as the case may be.

26.—(1) The provisions of—

- (a) the Baths and Washhouses Acts 1846 to 1925;
- (b) the Infectious Disease (Prevention) Act 1890;
- (c) Part III of the Public Health Acts Amendment
Act 1890;
- (d) the Public Libraries Acts 1892 to 1919;
- (e) sections 13 14 15 16 17 18 19 21 22 23 24
25 26 28 29 30 31 32 35 51 54 and 55 and
Parts III and IV of the Public Health Act
1925;

Adoptive
Acts.

shall be in force within and apply to the city.

(2) The provisions of any part of any adoptive Act
shall subject to the provisions of this section cease to be
in force within and apply to any part of the added area.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

(3) Any order under the Public Health Acts the Infectious Disease (Notification) Act 1889 or any of the adoptive Acts mentioned in subsection (1) of this section which is in force immediately before the appointed day throughout the existing city shall extend and apply to the added area and any such order in force immediately before that day within the added area shall save as hereinbefore provided cease to be in force in that area.

Orders
under
section 33 of
Act of 1894.

27. The powers duties and liabilities transferred to or conferred upon the Corporation by the order of the Minister under section 33 of the Act of 1894 dated the third day of July nineteen hundred and twenty-four in so far as such provisions are still in force or still have effect shall be deemed to have been transferred to or conferred on the Corporation.

Orders
under
Shops Acts
1912 to
1928.

28. Any order made under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1928 and in force immediately before the appointed day in any area affected by this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applies immediately before the appointed day.

Orders
under
Wild Birds
Protection
Acts.

29. Any order under the Wild Birds Protection Acts 1880 to 1908 which is in force at the appointed day in the existing city shall extend to the added area and any order under those Acts which is then in force in the county shall cease to extend to the added area.

Orders
under
Public
Health Acts
Amend-
ment Act
1907 or
Public
Health
Act 1925.

30. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925:—

(1) the provisions of any order made before the appointed day and declaring to be in force throughout the existing city any parts or sections of either of those Acts shall have effect as if any reference in that order to the existing city extended and applied to the city and as if such parts or sections were accordingly declared to be in force within the city :

(2) any other order under either of those Acts which is in force immediately before the appointed day throughout the existing city shall extend and apply to the added area :

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

(3) the provisions of any order made before the appointed day and declaring to be in force within the added area any parts or sections of either of those Acts shall cease to apply to the added area and the parts or sections declared by any such order to be in force shall save as hereinbefore provided cease to be in force within the added area but this provision shall not prejudice or affect any proceedings which are pending on the appointed day. A.D. 1930.

31.—(1) All byelaws made under the Public Health Acts and in force within the existing city or within the added area immediately before the appointed day shall— Byelaws &c

(a) if made before the first day of January nineteen hundred and five continue to apply to the existing city or to the added area (as the case may be) for one year after the appointed day unless previously repealed or altered by the Corporation but shall on the expiry of one year cease to be in force within the city;

(b) if made on or after the first day of January nineteen hundred and five continue to apply to the existing city or to the added area (as the case may be) until repealed or altered by the Corporation.

(2) Notwithstanding the foregoing provisions of this section any such byelaws in force in the existing city may by a byelaw made in accordance with sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority be continued and be extended with or without modification to the added area.

(3) All other byelaws made by the Corporation or by the watch committee of the existing city and in force immediately before the appointed day shall apply to the city until repealed or altered and all byelaws made by the county council or the standing joint committee of the county shall on that day cease to apply within the added area.

(4) In their application to the added area any byelaws continued in force by this section shall have effect as if they had been made by the Corporation and as if the added area were referred to therein instead of the area to which they now apply.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

—

(5) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw committed before the appointed day within the added area may be taken by the Corporation.

(6) In this section "byelaws" includes any regulation scale of charges list of tolls or table of fees or payments and the phrase "byelaws made under the Public Health Acts" means byelaws which under the Ministry of Health Act 1919 are subject to confirmation by the Minister whether made before or after the passing of that Act.

Register of
nursing
homes.

32.—(1) The clerk of the county council shall before the appointed day send the town clerk a copy of every entry in the register of the county council under the Nursing Homes Registration Act 1927 which relates to any nursing home situate within the added area and the town clerk shall include in the register of the Corporation under that Act the particulars furnished by the clerk of the county council.

(2) Any exemption in force immediately before the appointed day from the operation of the Nursing Homes Registration Act 1927 which may have been granted by the county council in respect of premises within the city shall continue in force until the exemption shall expire.

Insurance
committees.

33.—(1) The Minister may by order at any time after the passing of this Act make such provisions as appear to him to be necessary for transferring to the insurance committee for the city such of the property rights and liabilities of the insurance committee for the county as relate to persons resident in the added area.

(2) An order made under this section may authorise the insurance committee for the county to continue to act as insurance committee for the added area until such date not being later than the thirty-first day of December nineteen hundred and thirty-one as may be specified in the order and may for that purpose postpone the operation of this Act so far as it relates to the rights and duties of the respective insurance committees for the county and city until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

(3) An order under this section may be revoked revised or amended by an order made in like manner as the original order. A.D. 1930.
—

(4) Subject to any order under this section the persons who immediately before the appointed day are members of the respective insurance committees for the county and the existing city shall be deemed to have been appointed or elected as and shall be the members of the respective insurance committees for the county as altered by this Act and the city.

34.—(1) The Corporation shall be the burial board for the city and shall have within the city to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 and the Manchester Burial Board Act 1857 and any Acts amending the same : Burial Acts.

Provided that no approval sanction or authorisation of the vestry of a parish shall be required in respect of any act of the Corporation as the burial board.

(2) Nothing in this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day or prejudicially affect any right privilege or authority which immediately prior thereto is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

PART IV.

OFFICERS.

35. In this Part of this Act unless the context otherwise requires—

“local authority” means a local authority as defined in section 3 of the Local Government and other Officers’ Superannuation Act 1922 and includes the standing joint committee of a county ;

“officer” includes a servant and any person whose salary or wages is paid by a local authority.

36. The town clerk and all other officers of the Corporation of the existing city who hold office immediately before the appointed day shall continue to Officers of Corporation continued.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — be the town clerk and officers of the Corporation of the city and shall hold their offices by the same tenure as before that day.

Compensation to existing officers.

37.—(1) Every officer in office on the date of the passing of this Act who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office by determination of his appointment or by diminution or loss of fees salary or emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

(2) Any officer whose services are dispensed with or whose fees salary or emoluments are reduced within five years after the appointed day because his services are not required or his duties are diminished in consequence of this Act and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this Act.

Determination of compensation.

38.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Part of this Act regard shall be had to the conditions and circumstances mentioned in the Eighth Schedule to the Act of 1929 and the compensation shall not exceed the limit therein mentioned.

(2) Any compensation payable under this Part of this Act to any officer shall be paid out of the general rate fund and the provisions of the said schedule (except paragraph 11 thereof) shall apply subject to the following and any necessary modifications :—

(a) Any reference in that schedule to the council shall be construed as a reference to the Corporation ;

(b) Any reference in that schedule to the appointed day shall be construed as a reference to the appointed day defined by this Act.

(3) All fees or remuneration received and retained by an officer in connection with the preparation of

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

the jurors' book or the register of electors under the Representation of the People Acts shall subject to a reasonable deduction for any expenses incurred by the officer be regarded as part of the emoluments of the officer for the purposes of compensation. A.D. 1930.
—

39. No officer shall be entitled to receive compensation under this Act for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss. Compensation and superannuation.

40. The provisions of this Part of this Act shall apply to a teacher employed in a public elementary school maintained by the local education authority at the passing of this Act as if he were an officer employed by the authority : As to teachers in public elementary schools.

Provided that in the case of a teacher employed in a public elementary school maintained but not provided by the authority the provisions with respect to an officer whose services are dispensed with shall only apply if such teacher be discharged by the authority or by the direction or with the consent of the authority (otherwise than for misconduct) within five years after the appointed day.

PART V.

SUPPLEMENTARY PROVISIONS.

41.—(1) The parish councils of the existing townships shall liquidate so far as practicable before the appointed day all current debts and liabilities incurred by them. Liquidation of current debts and liabilities.

(2) If default is made by the parish council of any of the existing townships in complying with the requirement of subsection (1) of this section—

(a) the Corporation may in accordance with subsection (5) of section 2 of the Rating and Valuation Act 1925 make and levy over the area of such portion of the city as is co-terminous with the township of the parish council in default as an additional item of the general rate such amount in the pound as will be sufficient to defray the liability of that area in respect of the current debts and liabilities of the parish council in default ;

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.
—

- (b) any such additional item of the general rate may be made retrospectively to raise money for the payment of charges and expenses incurred by the parish council in default at any time within one year before the appointed day;
- (c) any such additional item shall be in addition to any rate levied subject to any limitation under the section of this Act whereof the marginal note is "Differential rating."

Differential
rating.

42.—(1) The Minister may if he thinks fit on the application of a local authority or of any railway company owning property in the added area and after considering any representations that may be made to him by the Corporation order that for the period or periods stated in the order the total amount in the pound of the general rate to be made and levied upon rateable hereditaments situate in the added area shall be less than the total amount in the pound of the general rate to be made and levied upon hereditaments within the area of the existing city by such sum or sums as may seem equitable to him.

(2) Any application under this section shall be made in writing before the expiration of two months from the passing of this Act.

(3) For the purposes of this section "a local authority" means the rural council and the parish council of any of the existing townships.

Assessment
areas.

43. As from the appointed day any scheme made under the Rating and Valuation Act 1925 for the constitution of an assessment area which includes the added area shall be varied by excluding the added area from such assessment area and the person who immediately before that day is the representative of the added area on the assessment committee shall cease to represent the same and the added area shall be included in the assessment area which comprises the existing city.

Deduction
in ascer-
taining
rateable
value of
tithes rail-
ways &c.

44. For the purposes of all valuation lists of the city under the Rating and Valuation Act 1925 the amount of the deduction to be made under paragraph (c) of subsection (1) of section 22 of that Act from net annual value in the ascertainment of the rateable value of such rateable hereditaments within the added area as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

Act shall be the same as the amount of the deduction made from the net annual value of similar hereditaments in the existing city and such adjustments of the value of those hereditaments in the added area shall be made by the Corporation as may be necessary to give effect to the provisions of this section.

A.D. 1930.
—

45.—(1) The valuation list of the existing city and the portion of the valuation list of the rural district which relates to hereditaments within the added area shall together form the valuation list of the city as from the appointed day.

Valuation
lists.

(2) The remaining portions of the valuation list of the rural district shall be the valuation list of that district as from the appointed day.

46.—(1) In any case where the extension of the existing city by this Act affects the distribution of any moneys between the county and the city or between the county and the city on one hand and any other county borough on the other or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions and in regard to the adjustment of which provision is not made in any other Act equitable adjustments may be made between the areas interested.

Adjustment
of financial
relations
between
county and
county
boroughs.

(2) Any adjustment authorised by subsection (1) of this section may be made by agreement between the councils affected or by an arbitrator appointed by those councils and if such adjustment shall not have been made or an arbitrator has not been appointed before the thirty-first day of December nineteen hundred and thirty-one or such later date as may be allowed by the Minister then on the application of any of the councils affected the Minister may if he thinks fit make or appoint an arbitrator to make the adjustment.

(3) In any case in which an agreement for equitable adjustments as aforesaid shall not have been made or so far as any such agreement shall not extend the provisions of the Act of 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications and the Minister or an arbitrator appointed by him (as the case may be) shall be substituted in those provisions for the

[Ch. clxxiii.] Manchester Extension [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Act or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed by him shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided that—

- (a) in lieu of subsection (6) of section 61 of the Act of 1888 subsections (1) and (5) of section 87 of that Act shall apply to any inquiries which may be directed by the Minister under this section and to the costs of those inquiries; and
- (b) subsection (6) of section 32 of the Act of 1888 shall apply to any agreement or award made under this section.

Adaptation
of pro-
visions as
to adjust-
ments.

47.—(1) Agreements may be made by any councils or other authorities affected by the alteration of any area or authorities made by this Act for the adjustment of any property income debts liabilities and expenses so far as they are affected by the alteration and section 62 of the Act of 1888 shall apply to any such adjustment with the following modifications :—

- (a) As if in subsections (5) (6) and (7) of that section the expression “ council ” included any authority affected by this Act or by anything done in pursuance of this Act;
- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in subsection (6) of the section that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction;

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

(c) As if the fund or rate specified in any agreement or award of adjustment were substituted for any fund mentioned in the section; and A.D. 1930.

(d) As if the following subsection were added to the section—

“(8) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part only of the parish the agreement or award may authorise such sum to be levied in that part as an additional item of the general rate.”

(2) This section shall not extend to any matter for the adjustment of which provision is made in any other Act or in the sections of this Act whereof the marginal notes are respectively “Transfer of public elementary schools” “County police stations &c.” “Adjustment of financial relations between county and county boroughs” and “Adjustment for purposes of licensing.”

48. In any adjustment between the Corporation and any council or other authority which may be made in consequence of this Act regard shall be had to the interest or share (if any) of the added area or any part thereof in any property— Adjustment as to properties.

(a) which is retained by or transferred to such council or other authority after or as from the appointed day who will thereby be relieved from providing accommodation; or

(b) which was prior to the appointed day subject to beneficial user by the inhabitants of the added area or any part thereof; or

(c) which or some part of which is realisable;

and due credit shall be given in such adjustment to the Corporation in respect of such interest or share (if any) except to the extent to which the property will remain or become a burden on the council or other authority by whom it is retained or to whom it is transferred.

49.—(1) An equitable adjustment shall be made between the county and the city respecting the interest of the added area in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act. Adjustment for purposes of licensing.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

(2) Such adjustment shall be made by agreement between the compensation authority (as defined by the Licensing (Consolidation) Act 1910) for the county and for the city within twelve months from the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Duplicate
entries in
electors'
lists.

50.—(1) The registration officer of the parliamentary county of Chester shall supply the registration officer of the parliamentary borough of Manchester on publication with a sufficient number of copies of the electors lists the lists of objections to the electors' lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the added area and shall forthwith notify the registration officer of the parliamentary borough of Manchester of his decisions on any objections or claims in respect of any such registration unit.

(2) It shall be the duty of the registration officer of the parliamentary borough of Manchester to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the city for the purpose of city council elections.

(3) Where the registration officer of the said parliamentary borough considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for the purpose aforesaid should be made in the electors' lists of any registration unit comprising any part of the added area he shall forthwith notify the registration officer of the said parliamentary county and that officer shall make such correction accordingly.

(4) This section shall apply to the preparation of the register in the year nineteen hundred and thirty-one and of later registers.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

51.—(1) For the purposes of the register of local government electors of the city prepared in the year nineteen hundred and thirty-one and of all matters connected with incidental to or consequent upon those purposes the added area shall be deemed to have formed part of the city as from the twenty-eighth day of February nineteen hundred and thirty-one.

A.D. 1930.

Provisions
as to
register of
electors.

(2) If the register of local government electors for any local government electoral area affected by this Act is not so framed as to show the persons entitled to vote at an election to be held for a district parish or ward or other voting area—

(a) the town clerk in the case of an election for any voting area within the city; and

(b) the registration officer of the parliamentary county of Chester in the case of an election for any voting area outside the city;

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) The additional expenses (if any) solely occasioned by any alteration or re-arrangement of the register authorised by subsection (2) of this section shall be borne by the Corporation.

(4) It shall be the duty of the town clerk and of any officer designated under article 3 of the Overseers Order 1927 by the Corporation or by the rural council for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by any registration officer for the purpose of any alteration or re-arrangement authorised by subsection (2) of this section.

(5) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or desirable to give effect to the provisions of this Act and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

52. For the purpose of summoning jurors and of jury service any parish affected by this Act shall be deemed to continue unaltered until a new jurors' book relating to the parish as altered comes into force.

Jury
service.

A.D. 1930.

—
Local land
charges
registers.

53.—(1) The local registrars for the county and for the rural district under the Land Charges Act 1925 and the rules made thereunder shall within fourteen days after the appointed day supply to the local registrar for the city an office copy of every entry in the local land charges register relating to any premises situate within the added area and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

(2) The local registrar for the city shall within fourteen days after the receipt of the office copy mentioned in subsection (1) of this section enter the same with any necessary modifications in the appropriate part of the local land charges register of the city.

(3) Until the entries are made as aforesaid or until the expiration of one month from the appointed day whichever be the earlier day the following provisions shall have effect in respect of all land within the added area :—

(a) The local registrar for the city shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the rural district and in the register for the county ;

(b) Where application is made for an official search the local registrar for the city shall issue free of charge a certificate of official search in the register of the city and shall forward to the local registrar for the rural district the application received by him together with the fees paid in respect thereof and shall also forward to the local registrar for the county a copy of the application ;

(c) The local registrar for the rural district and the local registrar for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed ;

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

(d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation; A.D. 1930.

(e) Where a local land charge duly registered in the local land charges register of the county or of the rural district is in pursuance of this Act transferred from the register of the county or the district to the register of the city such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the city.

54. Any proceeding taken by the rural council under the Town Planning Act 1925 or any enactment thereby repealed (including any agreement order approval consent or notice under that Act or repealed enactment) shall in so far as it relates to land within the added area have effect as if it had been taken by the Corporation in respect of that land: Town planning.

Provided that the agreement for the constitution of the North Cheshire Regional Planning Committee shall cease to apply to the added area.

55.—(1) Every person resident in the added area at the appointed day who has acquired or is in the course of acquiring— Settlement and irremovability.

(a) a settlement in the county by reason of residence birth or other qualification therein; or

(b) a status of irremovability from the county by reason of residence therein;

shall be deemed to have acquired or to be in the course of acquiring thereby (as the case may require) a settlement in or a status of irremovability from the city.

(2) For the purposes of this section consecutive periods of residence between the thirty-first day of March nineteen hundred and thirty and the appointed day in two or more places within the county shall be aggregated and reckoned as continuous residence in the added area.

A.D. 1930.

—
Apportion-
ment of
balances
and sums
received
under
precepts.

56.—(1) As soon as practicable after the appointed day the county council and the rural council shall as regards any cash balance in their hands at the appointed day estimate the proportion thereof derived from contributions paid by the added area and subject to a deduction on account of undischarged liabilities in respect of that added area accruing up to the appointed day shall transfer such amount to the Corporation.

(2) Any sum received after the appointed day by the county council or the rural council under a precept issued or rate made before that day in respect of the added area shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or sum received shall be subject to review on an adjustment under this Act.

Contribu-
tion orders
precepts
and arrears
of rates.

57.—(1) Notwithstanding the alteration of area effected by this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the added area shall be collected and recovered by the Corporation.

(3) Any rates so collected and recovered shall be a matter for adjustment under section 62 of the Act of 1888.

Parish
books and
documents.

58.—(1) All rate books books of account minutes of proceedings deeds papers and writings belonging to any of the existing townships and all documents directed by law to be kept with the public books writings and papers of those townships except any book or document relating to ecclesiastical matters shall be deposited in such custody as the Corporation may direct.

(2) Any ratepayer of any existing parish which is altered by this Act shall at all times have the same right of inspection and of making extracts from the books and documents of that existing parish which he would have had if this Act had not been passed.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

59.—(1) The accounts of the parish councils of Baguley Northen Etchells and Northenden shall be made up to the appointed day and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Act had not been passed.

A.D. 1930.

—
Audit of
accounts of
dissolved
parish
councils.

(2) Any sum certified by the district auditor to be due from any person at the audit of the accounts to which this section applies shall be paid to the treasurer of the city.

(3) This section shall apply to the accounts of any committee or officer of any of the authorities here mentioned as it applies to the accounts of the authorities.

60. Any scheme made by the Corporation or the Registrar-General under the provisions of section 24 of the Act of 1929 shall make provision for dealing with the added area but until the date on which a scheme affecting the added area comes into operation nothing in this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in the Births and Deaths Registration Acts 1836 to 1929 as to the alteration thereof.

Schemes
for
administra-
tion of
Registra-
tion Acts.

61. Any references in this Act to the provisions of the Education Act 1921 shall as respects any provision of that Act which may not be in operation at the appointed day be construed as a reference to the corresponding provision of the Education Acts 1870 to 1919 until such corresponding provision is repealed by the Education Act 1921.

References
to Educa-
tion Act
1921.

62. Any alderman or councillor who is to continue in office after the appointed day shall not during his present term of office be deemed to lose his qualification for being an alderman or councillor by reason of the alterations of area made by this Act.

Saving for
qualifica-
tion of
aldermen
and
councillors.

63.—(1) No alteration effected by this Act shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the rural council or any contract deed bond agreement or other instrument

Savings
for actions
contracts
&c.

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. (subsisting immediately before the appointed day) entered into or made by that council or their predecessors :

Provided that—

- (a) Any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the rural council in relation exclusively to the added area or any part thereof may be continued prosecuted and enforced by or against the Corporation; and
 - (b) All contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by the rural council (or their predecessors) in relation exclusively to the added area or any part thereof may be continued and enforced as fully and effectually as if instead of that council (or their predecessors) the Corporation had been a party thereto.
- (2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Act.

Other
savings.

64. Nothing in this Act shall—

- (1) restrict the power of the Secretary of State the Minister or the county council under the Act of 1888 the Act of 1894 the Act of 1929 or the Poor Law Act 1930;
- (2) affect the limits of the parliamentary borough of Manchester or the parliamentary county of Chester or the powers of the county council for the division of the parliamentary county into polling districts for parliamentary elections or for the division of the county into polling districts for the election of county councillors or any existing order or scheme for either of those purposes or for naming the polling places at any election;
- (3) affect the ecclesiastical divisions of any parish or prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment; or

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

- (4) affect land tax and for the purposes of imperial taxes or duties other than land tax the provisions of the section of this Act whereof the marginal note is "Alterations of parishes" shall not come into operation during any year in which under any enactment the annual value of any property adopted for the purpose of income tax under Schedules A and B for the preceding year is taken as the annual value of that property for the same purpose for that year. A.D. 1930.
—

65. Nothing in this Act shall be deemed to extend the limits of the Corporation for the supply of gas so as to include any part of the limits of the Altrincham Gas Company or the Stretford and District Gas Board for the supply of gas nor shall anything in this Act affect the limits of supply or the powers duties and privileges of the said company and board. For protection of gas undertakers.

66. Nothing in this Act shall be deemed to extend the limits of the Corporation for the supply of electricity so as to include any part of the area of supply of the Altrincham Electric Supply Limited nor shall anything in this Act affect the area of supply or the powers duties and privileges of the said company. For protection of Altrincham Electric Supply Limited.

67.—(1) Until the death resignation or removal from office of John Astley Killer Ferns the present holder of the office of coroner for the Stockport division of the county and Hercules Campbell Yates the present holder of the office of coroner for the Knutsford division of the county respectively (each of whom is in this section called "the county coroner") nothing in this Act shall restrict or affect the powers duties jurisdiction or emoluments of the county coroner in the division for which he is coroner and until such death resignation or removal from office so much of the city as is within his division shall for all purposes of inquest continue to be within that division. Jurisdiction of coroner.

(2) The salary and other emoluments of the county coroner in respect of the whole area within his jurisdiction shall continue to be payable by the county council.

(3) After the appointed day the Corporation shall pay to the county council such contribution towards the salary and other emoluments and superannuation (if any)

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — of the county coroner in respect of his services in the part of his division within the city as may from time to time be determined by agreement between the county council and the Corporation or failing such agreement by the Secretary of State.

(4) All fees allowances and disbursements lawfully paid or made by the county coroner in respect of matters arising in the part of his division within the city and allowed to him by the county council shall be repaid to the county council by the Corporation.

As to
sewage of
Cheadle
and Gatley
Urban
District.

68.—(1) In this section—

“ the district ” means the urban district of Cheadle and Gatley as from time to time constituted ;

“ the district council ” means the council of the district ;

“ the sewage of the district ” means all sewage from the district and from any area from which the district council have on or before the first day of July nineteen hundred and thirty agreed to receive sewage not exceeding six times the dry weather flow reckoned at thirty gallons per head per day from an ultimate population within such district and area of eighty thousand which is equivalent to fourteen million four hundred thousand gallons in any period of twenty-four hours from midnight to midnight ;

“ population ” in relation to any district means the population as estimated by the Registrar-General for that district in his last estimate for the time being except that in relation to any district from part only of which sewage is received the population shall be deemed to be the estimated number of persons from whom such sewage is received ; and

“ year ” means a year ending on the thirty-first day of March.

(2) If within two months after the passing of this Act the district council shall give to the Corporation notice in writing (in this section referred to as “ the first notice ”) requiring them to make the sewer which the Corporation are about to construct from the junction of

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

Wythenshawe Road and Longley Lane in the parish of Northenden under the river Mersey to join the existing sewer of the Corporation in Barlow Moor Road of sufficient size to convey the sewage of the district to the sewage disposal works of the Corporation at Davyhulme the following provisions shall have effect (namely) :—

A.D. 1930.
—

- (a) As from the first day of November nineteen hundred and thirty-five the district council shall pay to the Corporation an annual sum of four hundred and twenty pounds for a period of thirty years payable by half-yearly instalments the first payment to be made for half a year on the first day of May nineteen hundred and thirty-six and subsequent payments to be made half-yearly on the first day of November and the first day of May in each year of such period ;
- (b) From and after the giving of the first notice the district council shall (so far as their powers will permit) adopt and enforce regulations relating to the admission of trade refuse into their sewers in all respects similar to the regulations for the time being in force within the city for that purpose ;
- (c) If so requested by the Corporation the district council shall at the cost of the Corporation appoint not more than two officers or servants of the Corporation to such office of the district council as will entitle them to take samples of trade effluents discharged into the sewers of the district council and to report thereon to the district council ;
- (d) The district council shall give notice in writing to the Corporation of any application made to them for permission to make any new connection with any of the sewers of the district council if such connection is likely to be used for the discharge into the said sewers of liquids from manufacturing or trading processes and the district council shall require any person making such application as aforesaid to enter into a written agreement with them providing that he will comply with the regulations of the Corporation relating to trade refuse for the time being in force ;

A.D. 1930.
—

- (e) After the service of the first notice the district council shall not without the consent of the Corporation permit to enter into any of their drains or sewers any sewage or drainage from any district outside the boundaries of the district as from time to time constituted except domestic sewage from any area from which the district council have on or before the first day of July nineteen hundred and thirty agreed to receive and treat sewage;
- (f) The Corporation shall not be required to receive sewage from a greater population than eighty thousand persons nor a greater quantity of sewage than fourteen million four hundred thousand gallons in any period of twenty-four hours from midnight to midnight;
- (g) If at any time the population of the district and of any area from which the district council receive sewage shall exceed eighty thousand or the quantity of the sewage of the district shall exceed fourteen million four hundred thousand gallons in any period of twenty-four hours from midnight to midnight the Corporation shall not be required to receive the sewage from such additional population or in excess of such quantity—
 - (i) unless the Corporation shall agree to receive and treat such sewage; and
 - (ii) unless the district council shall agree to refund to the Corporation any expenditure incurred or to be incurred on such additional works as in the opinion of the Corporation are necessary and proper to enable the sewage from such additional population to be received conveyed and treated by the Corporation.

Any question which may arise as to the sum to be so refunded shall be referred to and determined by an arbitrator to be agreed upon between the district council and the Corporation or appointed in default of agreement on the application of either party after notice to the other of them by the President of the Institution

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such reference and in computing such sum the said arbitrator shall have regard to any submissions made to him by the district council that the said additional works or the expenditure which is proposed to be or has been incurred thereon are unduly expensive or extensive in character or are otherwise excessive for the purposes for which they are required and if works are or are proposed to be constructed by the Corporation for their own purposes which are also available for the purposes referred to in this paragraph the said arbitrator shall have regard to the proportion of such works which is properly attributable to the purposes referred to in this paragraph ;

A.D. 1930.
—

- (h) The district council may at any time not later than the thirty-first day of October nineteen hundred and thirty-five give a further notice in writing (in this section referred to as “ the second notice.”) to the Corporation requiring them to receive and treat the sewage of the district.

(3) If the district council shall not on or before the thirty-first day of October, nineteen hundred and thirty-five have given the second notice they shall have no further right to require the Corporation to receive or treat the sewage of the district and the district council shall have no interest in the sewer referred to in subsection (2) of this section and the provisions of paragraphs (b) (c) (d) (e) (f) and (g) of subsection (2) of this section shall on the first day of November nineteen hundred and thirty-five cease to have effect :

Provided that the annual payment referred to in paragraph (a) of subsection (2) of this section shall continue to be payable for the period of thirty years aforesaid whether or not the second notice shall have been given.

(4) If the district council shall give the second notice the following provisions shall have effect :—

- (a) The Corporation shall within twelve months after receiving the second notice or such longer time as may be agreed or in default of agreement

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

allowed by the Minister commence and complete the construction at the expense of the district council of a sewer (in this section referred to as "the said sewer") from the junction of Wythenshawe Road and Longley Lane in the parish of Northenden to a point on the boundary of the district near to where it is crossed by the Cheshire Lines Committee's railway running from Stockport to and through Baguley. The said sewer shall be of sufficient size to take the sewage of the district flowing at an even rate and at such level as will permit it to gravitate into the Corporation's sewers;

- (b) On and after the date upon which the said sewer shall have been completed the Corporation shall be liable to receive the sewage of the district into their sewers and to treat the same;
- (c) From the date on which the district council give the second notice they shall pay to the Corporation an annual sum of twelve hundred pounds payable half-yearly in arrear on the first day of May and the first day of November in each year;
- (d) From the date upon which the Corporation commence to receive the sewage of the district the district council shall pay to the Corporation such proportion of the total costs charges and expenditure incurred by the Corporation on or in connection with their sewage disposal works at Davyhulme in each year (as certified by the treasurer of the city) including capital charges rates and taxes as the population of the district (including any area from which the district council are receiving sewage) bears to the total population of all districts from which sewage is received and treated at the said works;
- (e) The sewage of the district other than domestic sewage shall be delivered into the sewers of the Corporation at an even rate throughout every period of twenty-four consecutive hours;
- (f) The sewage of the district shall be measured at a point near the boundary of the district by a meter or meters of such make quality description and construction and placed in such position

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

or positions as shall be approved by the Corporation. Such meter or meters shall be provided and maintained by the Corporation at the expense of the district council; A.D. 1930.
—

(g) The Corporation shall not interfere with nor have any responsibility for sewerage or draining the district other than receiving the sewage of the district into their sewers and treating the same at their sewage works.

(5) The sewers to be provided by the Corporation for conveying the sewage of the district shall be of sufficient size but need not be of greater size than would be sufficient to convey sewage at the rate of fourteen million four hundred thousand gallons in twenty-four hours if such sewage were received in a regular flow.

(6) The district council shall pay to the Corporation interest at the rate of six per centum per annum on any sum owing from them to the Corporation under the provisions of this section which shall not have been paid when it has become due until the same shall have been paid.

(7) Any difference arising under the foregoing provisions of this section shall except where otherwise expressly provided be referred to and determined by the Minister on the application of either party after notice to the other of them.

(8) The Corporation and the district council may vary the provisions of this section by agreement under their respective common seals.

PART VI.

FINANCE.

69.—(1) The Corporation may (in addition to the other sums which they are authorised to raise) borrow or raise at interest on the security of the general rate fund and the general rate such sums as they may require for and in connection with the following purposes (namely):— Power to borrow.

(a) The purpose of making any payment to any authority under this Act or under any enactment the provisions of which are applied thereby (including the payment or purchase in the name

[Ch. clxxiii.] *Manchester Extension* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

of the Corporation of any annuity payable by them under any provision contained in or applicable to the provisions of this Act which annuity the Corporation are hereby empowered to purchase);

(b) The purpose of making any payment under the provisions of the section of this Act of which the marginal note is " Compensation to existing officers ";

(c) The payment of the costs charges and expenses of this Act.

The Corporation shall repay all moneys borrowed pursuant to this subsection within the following periods (namely) :—

Money borrowed for the purpose (a) within forty-five years from the date or dates of borrowing;

Money borrowed for the purpose (b) within twenty years from the date or dates of borrowing;

Money borrowed for the purpose (c) within five years from the passing of this Act;

and those periods shall be the prescribed periods for the purposes of section 45 (As to repayment of borrowed moneys) of the Manchester Corporation Act 1891.

(2) The Corporation may also with the consent of the Minister borrow or raise at interest on the security of the general rate fund and general rate such further money as may be necessary for any of the purposes of this Act and shall repay any money borrowed under this subsection within such period as may be prescribed by the Minister.

Audit of
accounts.

70. The accounts of the Corporation under this Act shall be audited in like manner and with the like incidents as the like accounts of the Corporation.

Expenses of
execution
of Act.

71. Any expenses in the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the general rate fund.

Inquiries by
Minister.

72. Section 63 (Inquiries by Minister of Health) of the Manchester Corporation (General Powers) Act 1921 shall extend and apply to the purposes of this Act as if that section were re-enacted in this Act.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

73. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of money to be borrowed under this Act for that purpose.

A.D. 1930.

—
Costs of
Act.

**[Ch. clxxiii.] Manchester Extension [20. & 21 GEO. 5.]
Act, 1930.**

A.D. 1930.

The SCHEDULE referred to in the
foregoing Act.

PART I.

LOCAL ACTS.

Session and chapter.	Title or short title.
7 & 8 Vict. c. xl. -	- An Act for the good government and police regulation of the borough of Manchester.
7 & 8 Vict. c. xli. -	- An Act for the improvement of the town of Manchester.
8 & 9 Vict. c. cxli.	- An Act to effect improvements in the borough of Manchester for the purpose of promoting the health of the inhabitants thereof.
9 & 10 Vict. c. ccxix.	- The Manchester Market Act 1846.
10 Vict. c. xiv. -	- The Manchester Markets Act 1847.
10 & 11 Vict. c. cciii.	- The Manchester Corporation Waterworks Act 1847.
11 & 12 Vict. c. ci.	- The Manchester Corporation Waterworks Amendment Act 1848.
14 & 15 Vict. c. cxix.	- The Manchester General Improvement Act 1851.
16 & 17 Vict. c. xci.	- The Manchester New Streets Act 1853.
17 Vict. c. xxviii. -	- The Manchester Improvement Act 1854.
17 Vict. c. xxxviii.	- The Manchester Corporation Waterworks Act 1854.
18 Vict. c. xlv.	- The Manchester Improvement Act 1855.
20 & 21 Vict. c. cxvii.	- The Manchester Burial Board Act 1857.
21 Vict. c. xxv. -	- The Manchester Improvement Act 1858.
21 & 22 Vict. c. lxxxvii.	The Manchester Corporation Waterworks Act 1858.
23 Vict. c. xlviii. -	- The Manchester Improvement Act 1860.
23 Vict. c. xciii. -	- The Manchester Corporation Waterworks Act 1860.
26 & 27 Vict. c. lxviii.	- The Manchester Corporation Waterworks Act 1863.
28 Vict. c. xc. -	- The Manchester Improvement Act 1865.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

Session and chapter.	Title or short title.	A.D. 1930.
28 & 29 Vict. c. cxlv.	- The Manchester Corporation Water-works Act 1865.	
29 Vict. c. xxix.	- The Manchester Town Hall and Improvement Act 1866.	
30 Vict. c. xxxvi.	- The Manchester Corporation Water-works and Improvement Act 1867.	
32 & 33 Vict. c. cxvii.	- The Manchester Corporation Water-works and Improvement Act 1869.	
34 & 35 Vict. c. lxxv.	- The Manchester Improvement Act 1871.	
35 & 36 Vict. c. xxxi.	- The Manchester Corporation Water-works and Improvement Act 1872.	
38 & 39 Vict. c. clxi.	- The Manchester Corporation Water-works and Improvement Act 1875.	
42 Vict. c. xxxvi.	- The Manchester Corporation Water-works Act 1879.	
45 & 46 Vict. c. cciii.	- The Manchester Corporation Act 1882.	
48 & 49 Vict. c. cxxvi.	- The Manchester City Extension Act 1885.	
50 Vict. sess. 2. c. xxv.	- The Manchester Corporation Act 1887.	
52 & 53 Vict. c. xl.	- The Manchester Corporation Act 1889.	
54 & 55 Vict. c. ccvii.	- The Manchester Corporation Act 1891.	
56 Vict. c. xxvii.	- The Manchester Corporation Act 1893.	
57 & 58 Vict. c. ccix.	- The Manchester Corporation Act 1894.	
59 & 60 Vict. c. lxxiv.	- The Manchester Corporation Act 1896.	
60 & 61 Vict. c. ccxli.	- The Manchester Corporation Act 1897.	
62 & 63 Vict. c. clxxxviii.	The Manchester Corporation (General Powers) Act 1899.	
62 & 63 Vict. c. ccliv.	- The Manchester Corporation Tramways Act 1899.	
63 & 64 Vict. c. ccxci.	- The Manchester Corporation Tramways Act 1900.	
1 Edw. 7. c. cxciii.	- The Manchester Corporation Act 1901.	
2 Edw. 7. c. xli.	- The Manchester Corporation Tramways Act 1902.	
2 Edw. 7. c. cxxxviii.	- The Manchester Corporation (General Powers) Act 1902.	
3 Edw. 7. c. ccxiii.	- The Manchester Corporation Act 1903.	
4 Edw. 7. c. ccxi.	- The Manchester Corporation Tramways Act 1904.	

**[Ch. clxxiii.] *Manchester Extension* [20 & 21 Geo. 5.]
Act, 1930.**

A.D. 1930.	Session and chapter.	Title or short title.
	4 Edw. 7. c. ccxxxv.	- The Manchester Corporation (General Powers) Act 1904.
	6 Edw. 7. c. xci.	- The Manchester Corporation Act 1906.
	7 Edw. 7. c. cii.	- The Manchester Corporation Tramways Act 1907.
	8 Edw. 7. c. lxxxviii.	- The Manchester Corporation Act 1908.
	9 Edw. 7. c. lvii.	- The Manchester Corporation Act 1909.
	1 & 2 Geo. 5. c. cviii.	- The Manchester Corporation Act 1911.
	4 & 5 Geo. 5. c. cxlvi.	- The Manchester Corporation Act 1914.
	9 & 10 Geo. 5. c. cxix.	- The Manchester Corporation Act 1919.
	10 & 11 Geo. 5. c. xcvii.	The Manchester Corporation Act 1920.
	11 & 12 Geo. 5. c. li.	- The Manchester Corporation Water-works Act 1921.
	11 & 12 Geo. 5. c. cxix.	The Manchester Corporation (General Powers) Act 1921.
	14 & 15 Geo. 5. c. xcv.	- The Manchester Corporation Act 1924.
	17 & 18 Geo. 5. c. ciii.	- The Manchester Corporation Act 1927.
	19 & 20 Geo. 5. c. lxxxi.	The Manchester Corporation Act 1929.

PART II.

CONFIRMATION ACTS.

Session and chapter.	Short title.	Order.
38 & 39 Vict. c. clxvii.	The Tramways Orders Confirmation Act 1875.	The Manchester Corporation Tramways Order 1875.
41 & 42 Vict. c. clxiii.	The Tramways Orders Confirmation Act 1878 (No. 2).	The Manchester Corporation Tramways Order 1878.
43 & 44 Vict. c. xxxvi.	The Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1880.	The Manchester Order 1880.
44 & 45 Vict. c. lxvi.	The Local Government Board's Provisional Orders Confirmation (Halifax &c.) Act 1881.	Order relating to Manchester and dated 10th May 1881.

[20 & 21 GEO. 5.] *Manchester Extension* [Ch. clxxiii.]
Act, 1930.

Session and chapter.	Short title.	Order.	A.D. 1930.
44 & 45 Vict. c. cv.	The Tramways Orders Confirmation (No. 1) Act 1881.	The Manchester Corporation Tramways Order 1881.	
47 & 48 Vict. c. ccxv.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1884.	The Manchester Order 1884.	
48 & 49 Vict. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1885.	Order relating to Manchester and dated 4th June 1885.	
50 Vict. c. xvii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1886.	Order relating to Manchester and dated 11th June 1886.	
52 & 53 Vict. c. cxvii.	The Local Government Board's Provisional Orders Confirmation (No. 16) Act 1889.	Order relating to Manchester and dated 4th June 1889.	
53 & 54 Vict. c. cxcvii.	The Electric Lighting Orders Confirmation (No. 11) Act 1890.	The Manchester Electric Lighting Order 1890.	
56 & 57 Vict. c. cxxx.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1893.	The Manchester Order 1893.	
56 & 57 Vict. c. cxci.	The Tramways Orders Confirmation Act 1893.	The Manchester Corporation Tramways Order 1893.	
59 & 60 Vict. c. lxxxii.	The Electric Lighting Orders Confirmation (No. 1) Act 1896.	The Manchester Electric Lighting Order 1896.	
59 & 60 Vict. c. cx.	The Local Government Board's Provisional Orders Confirmation (No. 18) Act 1896.	The Manchester Gas Order 1896.	
59 & 60 Vict. c. cxx.	The Tramways Orders Confirmation (No. 1) Act 1896.	The Manchester Corporation Tramways Order 1896.	
60 & 61 Vict. c. cli.	The Tramways Orders Confirmation (No. 1) Act 1897.	The Manchester Corporation Tramways Order 1897.	
62 Vict. c. xxviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1899.	The Manchester Order (No. 1) 1899.	
63 & 64 Vict. c. liii.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1900.	The Manchester Order (No. 1) 1900.	

**[Ch. clxxiii.] Manchester Extension [20 & 21 GEO. 5.]
Act, 1930.**

A.D. 1930.

Session and chapter.	Short title.	Order.
4 Edw. 7. c. lxii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1904.	The Manchester Order 1904.
7 Edw. 7. c. clxv.	The Local Government Board's Provisional Order Confirmation (No. 15) Act 1907.	The Manchester Order 1907.
8 Edw. 7. c. xxix.	The Tramways Order Confirmation (No. 1) Act 1908.	The Manchester Corporation Tramways Order 1908.
3 & 4 Geo. 5. c. cxxxi.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1913.	The Manchester Order 1913.
3 & 4 Geo. 5. c. cxxxvii.	The Local Government Board's Provisional Orders Confirmation (No. 13) Act 1913.	The Manchester (Extension) Order 1913.
9 & 10 Geo. 5. c. lxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1919.	The Manchester Order 1919.
10 & 11 Geo. 5. c. cxiii.	The Ministry of Health Provisional Orders Confirmation (No. 6) Act 1920.	The Manchester Order 1920.
11 & 12 Geo. 5. c. xcix.	Provisional Order (City of Manchester Police and Fire Brigade Pension Funds) Confirmation Act, 1921.	Order relating to the city.
S. R. & O. 1924 No. 580.	- - - - -	Manchester Gas (Charges) Order 1924.
S. R. & O. 1927 No. 1125.	- - - - -	Manchester Gas Order 1927.
S. R. & O. 1929 No. 182.	- - - - -	Rating and Valuation (Manchester Water Rates) Order 1929.
—	- - - - -	Manchester Electricity (Extension) Special Order 1929.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.